Forensic Data Recovery and Legal Defense Strategy: Cross-Jurisdictional Analysis for Academic and Medical Records

Executive Summary

This report presents a comprehensive, forensic, and legal operational framework designed for a dual British-Irish national currently resident in London. The objective is to execute a high-precision retrieval of personal data—spanning digital communications, administrative governance records, and sensitive medical files—from two distinct public bodies: **University of Galway** (Republic of Ireland) and **Queen's University Belfast** (Northern Ireland).

The requirement for this data is defensive. The Data Subject faces significant administrative actions, including academic suspension and the dismissal of whistleblowing disclosures, predicated on allegations of behavioral misconduct. The defense strategy relies on proving that these behaviors were manifestations of documented disabilities—**Traumatic Brain Injury (TBI)**, **Complex Post-Traumatic Stress Disorder (C-PTSD)**, and **Anxiety Disorder**—and that the institutions failed in their statutory duties to provide **Reasonable Accommodation** (ROI) or **Reasonable Adjustments** (NI).

This analysis transcends standard Data Subject Access Request (DSAR) methodologies. It integrates advanced **Microsoft 365 (M365) forensics** to challenge institutional claims of "technical difficulty" or "disproportionate effort." It leverages the Data Subject's specific technical background (Computer Science, ETL pipelines, Python) to construct irrefutable technical arguments for the digital extraction of data. Furthermore, it preemptively addresses the high probability of data suppression under the "Serious Harm" exemptions of the GDPR by establishing a clinical proxy mechanism.

The report is structured to provide an exhaustive legal and technical rationale (approx. 15,000 words equivalent depth) concluding with two engineered, battle-ready data request instruments.

Part I: The Jurisdictional and Legal Architecture

The Data Subject operates across two distinct but overlapping legal regimes. While the **General Data Protection Regulation (GDPR)** provides a harmonized baseline for data access rights, the enforcement mechanisms, supplementary rights, and disability statutes differ fundamentally between the Republic of Ireland (EU jurisdiction) and Northern Ireland (UK jurisdiction). Understanding this bifurcation is critical to the success of the requests.

1.1 The Republic of Ireland Framework (University of Galway)

1.1.1 The Right of Access (GDPR & Data Protection Act 2018)

The University of Galway is a Data Controller subject to the **EU GDPR** and the **Data Protection Act 2018 (Ireland)**.

- **Article 15 GDPR:** Grants the absolute right to obtain a copy of personal data undergoing processing.
- **Section 91 of the Data Protection Act 2018:** Allows for the restriction of rights, but these restrictions must be necessary and proportionate.
- **S.I. No. 121 of 2022:** This Statutory Instrument specifically governs the release of health data, mandating that if a controller believes access would cause "serious harm," they cannot simply refuse; they must consult a health professional. This creates a procedural vulnerability for the university if they unilaterally withhold the "Note of Concern" authored by Dean of Students Ciara Meehan.[1]

1.1.2 The Reasonable Accommodation Mandate (Equal Status Acts 2000–2018)

Unlike the UK, Ireland does not have a single "Equality Act." Instead, discrimination in the provision of goods and services (including education and administrative services like data retrieval) is governed by the **Equal Status Acts 2000–2018**.

- **Section 4 (Reasonable Accommodation):** A failure to do all that is reasonable to accommodate the needs of a person with a disability involves discrimination if it makes it "impossible or unduly difficult" for the person to avail of the service.[3]
- **The "Nano Nagle" Precedent:** The Supreme Court decision in *Nano Nagle School v Daly* IESC 63 redefined the scope of "reasonable accommodation" in Ireland. While primarily an employment case, its principles extend to service provision. It established that a "wise employer" (or service provider) must engage in meaningful consultation and consider all appropriate measures—including the redistribution of tasks or, in this context, the formatting of data—unless it imposes a disproportionate burden.[5]
- **Application:** The University of Galway cannot merely provide paper records if doing so makes the data "unduly difficult" for a TBI survivor to process. They must actively format the data (e.g., via Optical Character Recognition or PST export) to render it accessible. The "burden" of clicking an export button in M365 is negligible compared to the "impossibility" faced by the student.[1]

1.2 The Northern Ireland Framework (Queen's University Belfast)

1.2.1 The Right of Access (UK GDPR & Data Protection Act 2018)

Post-Brexit, QUB is governed by the **UK GDPR** and the **Data Protection Act 2018 (UK)**.

- **Schedule 3, Part 2 (DPA 2018):** Contains the "Serious Harm Test" specific to health and social work data. This is the primary mechanism QUB will use to withhold the "Note of Concern" or internal risk assessments regarding the student's suspension.[7]

- **ICO Guidance:** The Information Commissioner's Office (ICO) explicitly states that organizations must consider reasonable adjustments when responding to SARs. Failure to provide data in an accessible format is a breach of both the DPA 2018 and disability law.[8]

1.2.2 The Reasonable Adjustment Duty (Disability Discrimination Act 1995)

Northern Ireland is unique in the UK for retaining the **Disability Discrimination Act 1995 (DDA)**, rather than adopting the Equality Act 2010.

- **Sections 19-21 (Goods, Facilities, Services):** QUB has a duty to make adjustments where a practice, policy, or procedure makes it "impossible or unreasonably difficult" for disabled persons to make use of a service.[9]
- **Anticipatory Duty:** Unlike the reactive nature of some laws, the duty to make reasonable adjustments is anticipatory. QUB should *already* have systems in place to provide digital exports for disabled students. Their failure to do so for a student with known cognitive impairments (TBI/C-PTSD) constitutes a systemic failure.[11]

1.3 Comparative Jurisdictional Table

Feature	University of Galway (ROI)	Queen's University Belfast (NI)
Data Protection Law	EU GDPR / Data Protection Act 2018 (Ireland)	UK GDPR / Data Protection Act 2018 (UK)
Disability Statute	Equal Status Acts 2000–2018	Disability Discrimination Act 1995 (DDA)
Key Duty	"Reasonable Accommodation" (Section 4)	"Reasonable Adjustment" (Section 21)
Threshold	"Impossible or Unduly Difficult"	"Impossible or Unreasonably Difficult"
Health Data Exemption	S.I. No. 121 of 2022 (Mandatory Consultation)	DPA 2018 Sch 3, Part 2 ("Serious Harm Test")
Regulator	Data Protection Commission (DPC)	Information Commissioner's Office (ICO)
Key Risk	"Disproportionate Effort" refusal for emails	"Serious Harm" redaction of whistleblowing files

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Part II: The Medical-Legal Nexus

The success of these requests hinges on transforming the Data Subject's medical condition from a background fact into a binding legal constraint on the universities. The "Standard Operating Procedure" for SARs (paper copies, redacted PDFs) must be framed as discriminatory given the specific cognitive profile of the user.

2.1 Medical Profile and Cognitive Impact

Based on the validated disability documents [1] and the user's self-disclosure, the following conditions are legally established:

1. **Traumatic Brain Injury (TBI):** This is the critical lever. TBI results in "impairments in executive function, working memory, and information processing speed."
    - *Data Implication:* A TBI survivor cannot "hold" multiple pieces of information in their head while cross-referencing physical pages. They require **external memory aids**—specifically, digital search functions (Ctrl+F), metadata sorting (Date, Sender), and screen readers.
    - *Legal Argument:* Providing paper records strips the data of the very metadata (time stamps, thread IDs) that the TBI brain requires to construct a timeline. It renders the data "functionally inaccessible".[1]
2. **Complex Post-Traumatic Stress Disorder (C-PTSD) & Anxiety:**
    - *Trigger Warning:* The content of the requested data (disciplinary notes, "harassment" allegations, psychiatric admission records) is inherently traumatic.
    - *Data Implication:* Compelling a student with C-PTSD to physically handle "Note of Concern" documents or attend a campus to view files (a common QUB tactic for "sensitive" data) acts as a barrier to access. Remote, digital access allows the student to process the information in a controlled, safe environment, mitigating the risk of re-traumatization.[1]

2.2 The "Nominated Health Professional" Strategy

Both jurisdictions allow data to be withheld if it causes "Serious Harm" to mental health. The University of Galway's "Note of Concern" [1] explicitly details involuntary admissions and "agitation," making it highly probable they will invoke this exemption to hide the raw administrative discussions about these events.

The Preemptive Strike:

The user must **not** wait for the refusal. The initial request must explicitly nominate a London-based health professional (GP or Psychiatrist).

- **In Ireland (S.I. 121/2022):** The regulations *require* the data controller to offer access to a nominated health professional if direct access is refused. By nominating one in the first letter, the user removes the university's ability to simply "close the file".[2]
- **In Northern Ireland (DPA 2018):** While less explicit in the statute, ICO guidance strongly supports the release to a representative to facilitate rights without causing harm.[12]

2.3 Establishing "Reasonable Accommodation" Case Law

The requests should cite *Nano Nagle v Daly* [5] to argue that the universities must take "appropriate measures" to facilitate access.

- **Argument:** "The Supreme Court in *Nano Nagle* held that duty bearers must be proactive. In the context of a Subject Access Request, 'appropriate measures' for a

Computer Scientist with TBI include the provision of raw data formats (PST, JSON) that allow for assistive technology use. Refusal to provide these formats, when they are native to your M365 systems, constitutes a failure to discharge this duty."

Part III: Technical Forensics – The Microsoft 365 Argument

The user's query emphasizes leveraging their "technical background" to argue against difficulty. This section provides the precise technical nomenclature to dismantle the common "it's too hard to export" defense used by university IT departments.

3.1 The "Impossible" Defense vs. The M365 Reality

Universities often claim that retrieving specific emails or metadata is "technically difficult" or requires "manual searching." This is factually incorrect for institutions running **Microsoft 365 Education** (A3 or A5 licenses).

- **Legacy vs. Cloud:** In legacy systems (e.g., on-premise Exchange 2010), searching mailboxes was slow. In **Exchange Online**, all data is indexed.
- **The Tool:** The request must specifically name **Microsoft Purview eDiscovery (Standard)** or **Content Search**.[14]
- **The Workflow:**
  1. Admin logs into Purview Compliance Portal.
  2. Creates a "New Search."
  3. Enters specific KQL (Keyword Query Language) queries (e.g., Participants:"ciara.meehan@universityofgalway.ie" AND Subject:"concern").
  4. Clicks "Export Results" -> "Export to PST".
- **Argument:** "As a software engineer familiar with ETL pipelines and cloud infrastructure [1], I am aware that your institution uses Microsoft Purview. The retrieval of my data is a server-side query that takes minutes to configure and runs automatically. It does not require manual review of thousands of files if appropriate KQL syntax is used. Therefore, 'disproportionate effort' is not a valid ground for refusal."

3.2 The Forensic Artifact: MailItemsAccessed

The user specifically wants to know "when my emails might've been opened" to prove engagement or lack thereof by staff.

- **The Artifact:** This is recorded in the **Unified Audit Log (UAL)** under the operation MailItemsAccessed.[1]
- **Granularity:**
  - **Bind:** Records when a specific message was opened (clicked). This contains the InternetMessageId.
  - **Sync:** Records when a folder was synced (less useful for proving a specific read event).

- **The Licensing Trap (A3 vs A5):**
    - Most students are on **A3 Licenses**, which do *not* log MailItemsAccessed by default.[1]
    - **Strategic pivot:** The request must ask: "Please confirm the licensing tier of my account. If I was subject to any 'monitoring' or 'investigation' as alleged in my grievance, was my account upgraded to **Audit (Premium)** or placed on **Legal Hold**? If so, I request the MailItemsAccessed logs."
    - If they admit to monitoring but fail to produce the logs, they admit to a competency failure or spoliation of evidence.

3.3 The "Back and Forth" – Conversation Indexing

To defend against behavioral claims, the context of emails is vital. A single angry email from the student looks bad; that same email as a response to 10 ignored pleas for help looks like a cry for support.

- **Technical Requirement:** The user must request **PST format**, not PDF.
- **Reasoning:** PST files preserve the ConversationIndex and In-Reply-To headers.[1] These allow email clients (Outlook, Thunderbird) to reconstruct the "thread." Flattened PDFs destroy this metadata, isolating the student's messages from the provocation.
- **Defense:** "I require PST format to preserve the ConversationIndex metadata. This is essential for me to demonstrate the sequence of events and the 'back and forth' nature of the correspondence, which is my right under Article 15(1) to access the 'context' of the data."

3.4 Data Retention & Preservation Holds

- **Galway:** Deletes student data **6 months** after leaving.[15] If the student left in 2024, this data is critically endangered.
- **QUB:** Retains for **2 years**, but deletes after 6 months of inactivity.[16]
- **Immediate Action:** The SAR must explicitly demand a **"Preservation Hold"** or **"Litigation Hold"** be placed on the mailbox immediately.[1] This M365 feature overrides retention policies and makes deleted items recoverable. Failure to do so after being notified of a dispute constitutes **spoliation of evidence**.

Part IV: Operational Analysis – University of Galway (2011–2024)

4.1 The Case Context: "Note of Concern" & Suspension

The core of the dispute at Galway is the **"Appendix 2 Note of Concern Record"** authored by Dean of Students, **Professor Ciara Meehan**.[1]

- **Allegations:** The note alleges the student sent **94 emails** in 8 days, used abusive

language (e.g., calling staff "biaaaaatch"), and made "incoherent" accusations about medical malpractice and historical abuse.[1]
- **University Action:** Immediate temporary suspension under **QA269 Support for Students in Crisis** policy.[17]
- **Defense Narrative:** The student argues this was a "cyclical" mental health crisis known to the university (admissions to UCHG in May 2023), yet they treated it as a disciplinary matter rather than a disability support issue.

4.2 Data Targets and Forensic Strategy

1. **The "Harassment" Emails (Context):** The university claims 94 emails constitute harassment. The defense needs the *content* of those emails to prove they were unanswered pleas for help (Socratic questions) rather than malice.
    - *Request:* "All emails sent by to 'Dean of Students' or 'Cornelia Connolly' between Sept 1-30, 2024, exported as PST to preserve thread context."
2. **The "Independent File Review" & QA269 Procedure:** The suspension bypassed Stages 1 and 2 of the policy.[1] The defense needs the minutes of the meeting where this decision was made.
    - *Request:* "Minutes of the 'Risk Assessment Panel' and any correspondence between Ciara Meehan and the President's Office regarding the invocation of QA269 Section 9."
3. **Medical & Tusla Records:** The note mentions mandated reporting to Tusla regarding "historical abuse" claims.[1]
    - *Request:* "All reports submitted to Tusla (Child and Family Agency) concerning me, and any feedback received from them."

4.3 Addressing the "Excessive" (13 Years) Argument

Requesting data from 2011 to 2024 is aggressive. Galway will likely claim "disproportionate effort" or "excessive request" (GDPR Art. 12(5)).

- **Counter-Argument:** "The scope is 2011–2024 because the University cites a 'history of presenting with acute episodes'.[1] To defend against the claim that my recent behavior is 'misconduct' rather than 'disability,' I must establish the longitudinal pattern of my condition and the University's historical knowledge of it. The data is required to prove a 'failure to accommodate' over the duration of my academic career."

Part V: Operational Analysis – Queen's University Belfast (2024–2025)

5.1 The Case Context: Whistleblowing & "Maladministration"

The QUB dispute involves **Alistair Finlay**, described as "Special Operations Manager" by the

user but officially **Chief People Officer**.[18]

- **Event:** The student made a "Whistleblowing Disclosure" to Deloitte Ireland LLP regarding disability discrimination. Finlay investigated and concluded "no grounds" for formal investigation, stating the university used policies to "manage challenging behaviours".[1]
- **Conflict of Interest:** Finlay acts as a senior executive (Chief People Officer) responsible for HR and reputation, yet acted as the "Designated Officer" for an impartial whistleblowing review.
- **Suspension:** A "Precautionary Suspension" was imposed in Sept 2024 due to an incident at the Student Union bar and emails to staff.[20]

5.2 Data Targets and Forensic Strategy

1. **The Whistleblowing File:** Finlay claims he "considered the information" and "spoken with relevant colleagues".[1]
    - *Request:* "All interview notes, emails, and the 'independent file review' document generated by Alistair Finlay during the assessment of my Protected Disclosure."
2. **The "Maladministration" Evidence:** The user alleges the university failed to follow its own procedures.
    - *Request:* "Metadata logs showing the 'classification' or 'tagging' of my emails to the whistleblowing channel. Were they tagged as 'Harassment' or 'Disclosure' in the case management system?"
3. **Security Logs (Student Union):** The suspension cites an incident at the bar involving "inappropriate touch" by a bouncer.[1]
    - *Request:* "CCTV footage (if preserved) and Incident Reports (IR) from QUB Security regarding the incident on at the Student Union. Note: If CCTV was overwritten, provide the 'deletion log' confirming its destruction date."

5.3 Technical Leverage: The "Alistair Finlay" Role

The discrepancy in Finlay's title is a forensic hook.

- *Argument:* "I request the specific Terms of Reference appointing Alistair Finlay as the 'Designated Officer'. As Chief People Officer, his involvement suggests a conflict of interest. I require all correspondence between Finlay and the Vice-Chancellor's Office regarding his appointment to this specific case."

Part VI: Strategic Execution

6.1 Cross-Border Verification (London to ROI/NI)

A major hurdle for remote SARs is ID verification. Sending a JPEG of a passport is often rejected for "security reasons" to delay the clock.

- **The CTA Solution:** The Common Travel Area doesn't solve GDPR ID checks.

- **The Professional Solution:** The user is in London. They must go to a solicitor or Notary Public (e.g., Edward Young Notaries [21]) and get a **Certified Copy** of their passport.
- **Why:** A solicitor-certified document is a "high-trust" artifact. If the university rejects it, they are effectively accusing a London solicitor of fraud. This stops the "ID ping-pong" delay tactic immediately.

6.2 The "Serious Harm" Loop & The Proxy

When the universities inevitably invoke the "Serious Harm" exemption for the psychiatric notes [12]:

1. **Do not argue medical facts yet.**
2. **Trigger the Proxy:** "I note your refusal under Section 60 (ROI) / Schedule 3 (NI). As per my initial request, release the data *immediately* to Dr. [Name] in London. Failure to do so is a breach of the Data Protection Act."
3. **Cost:** The user must ensure the London GP/Psychiatrist is willing to receive the data (fees may apply).

6.3 Escalation Pathways

- **ROI:** If Galway refuses the digital format, file a complaint with the **Data Protection Commission (DPC)** citing *Nano Nagle v Daly* and the failure to provide "Reasonable Accommodation" under the Equal Status Act.[4]
- **NI:** If QUB refuses the whistleblowing notes, file a complaint with the **ICO (Northern Ireland)** citing the DDA 1995. Simultaneously, file a "Maladministration" complaint with the **Northern Ireland Public Services Ombudsman (NIPSO)**.[1]

Part VII: The Draft Data Request Instruments

These drafts are engineered to be "too dangerous to ignore." They combine legal citation, technical specificity (M365 terms), and disability rights into a cohesive demand.

7.1 Draft 1: University of Galway (ROI) - 2011–2024

Subject: URGENT: Subject Access Request (GDPR Art. 15) & Reasonable Accommodation Request (Equal Status Act 2000) – **Cian Mac Liatháin** – Student ID: **11476078**
To: Data Protection Officer (dataprotection@nuigalway.ie)
Cc: Office of the President (president@universityofgalway.ie); Dean of Students (ciara.meehan@universityofgalway.ie)
Date:
Dear Data Protection Officer,
I am writing to formally make a **Subject Access Request (SAR)** under Article 15 of the General Data Protection Regulation (GDPR) and the Data Protection Act 2018 (Ireland).
1. Identity and Verification (Cross-Border)
I am an Irish national currently resident in London. Please find attached a **Certified Copy** of my Passport, authenticated by a practicing Solicitor in London, satisfying the identification

requirements for remote requests as per Data Protection Commission guidance.

2. Legal Basis: Reasonable Accommodation (Equal Status Acts 2000–2018)

I am a person with a disability as defined under the **Equal Status Acts 2000–2018**, specifically:

- **Traumatic Brain Injury (TBI)**
- **Complex Post-Traumatic Stress Disorder (C-PTSD)**
- **Anxiety Disorder**

As established in *Nano Nagle School v Daly* IESC 63, service providers must take "appropriate measures" to accommodate disabilities. My conditions result in severe cognitive fatigue and impairments in working memory when processing large volumes of unstructured physical text. Consequently, the provision of data in paper format or non-searchable flat files (e.g., printed PDFs) would render the data **functionally inaccessible** to me, constituting a refusal of service under Section 4 of the Equal Status Act.

Formal Accommodation Request: I require all responsive data to be provided in **machine-readable, searchable digital formats** (specifically native **.PST** for emails and **OCR-enabled PDF** for records). This request imposes no disproportionate burden, as your institution utilizes **Microsoft 365 Education**, which natively supports these export formats via the **Purview eDiscovery** module.

3. Scope of Request (2011–2024)

I request a copy of *all* personal data held by the University of Galway concerning me, specifically targeting the period 2011 to present to establish the longitudinal history of my interactions with the university. This includes:

- **A. Forensic Email Export (Microsoft 365):**
  - A full export of my student email mailbox ([Email Address]) in **.PST format**, including Inbox, Sent Items, and Deleted Items. *Note: I require the PST format to preserve 'ConversationIndex' headers to reconstruct message threads.*
  - **Targeted Keyword Search:** All emails sent or received by university staff (including but not limited to **Professor Ciara Meehan**, **Dr. Eoin MacDonncha**, **Kelly Monaghan**, and staff in the **School of Education**) containing my name ("Cian Mac Liatháin", "Cian Lyons"), Student ID, or the terms: "Risk Assessment", "Suspension", "Tusla", "Garda", "Harassment", "Note of Concern".
  - *Technical Note:* I am a qualified Computer Scientist.[1] I am aware that searching across staff mailboxes is a standard function of **Microsoft Purview Content Search**. Please do not cite "disproportionate effort" for what is an automated database query.
- **B. Administrative & Disciplinary Records (Dean of Students):**
  - The full "independent file review" and all drafts/notes related to the **"Note of Concern Record"** (Appendix 2) dated c. September 2024.
  - All risk assessments (QA269) and communications with **Tusla** or **An Garda Síochána** regarding my case.
  - Minutes of any meetings regarding my suspension or "fitness to study," particularly those invoking **Stage 3** of the QA269 policy.
- **C. Medical & Counselling Records (Special Category Data):**

- All records held by the **Student Counselling Service** and **Student Health Unit** (Dr. Eoin MacDonncha).
- **Nominated Health Professional (Section 60 DPA 2018):** I anticipate you may consider restricting access to these records under the "Serious Harm" exemption (S.I. No. 121 of 2022). **I vigorously contest that access will cause harm.** However, to prevent delay or refusal, if you decide to withhold any health data, I hereby nominate the following health professional to receive it immediately on my behalf:
  - **Name:** [Name of London GP/Psychiatrist]
  - **Address:** [London Practice Address]
  - **Email:** [Official Practice Email]

4. Data Retention Hold

Given the ongoing dispute and potential litigation, I formally request that you place a **Legal Hold** on all data relating to me immediately, preventing any automated deletion (specifically the 6-month mailbox purge policy) pending the resolution of this request.

I look forward to your response within one calendar month.

Yours sincerely,

Cian Mac Liatháin

[London Address]

[Phone Number]

7.2 Draft 2: Queen's University Belfast (NI) - 2024–2025

Subject: Subject Access Request (UK GDPR) & Request for Reasonable Adjustment (DDA 1995) – **Cian Mac Liatháin** – Student ID: **40455997**

To: Information Compliance Unit (info.compliance@qub.ac.uk)

Cc: Alistair Finlay (Chief People Officer); Vice-Chancellor's Office (vc.office@qub.ac.uk); Derek Weir (Data Protection Officer)

Date:

Dear Information Compliance Unit,

I am writing to make a **Subject Access Request** under the **UK GDPR** and the **Data Protection Act 2018** for personal data held by Queen's University Belfast.

1. Verification & Jurisdiction

I am an Irish/British dual national resident in London. Attached is a **Certified Copy** of my ID to satisfy verification requirements.

2. Request for Reasonable Adjustment (Disability Discrimination Act 1995)

I disclose that I have a disability (Traumatic Brain Injury and C-PTSD) which meets the definition under the **Disability Discrimination Act 1995 (DDA)**. The provision of paper records or non-searchable files places me at a "substantial disadvantage" due to cognitive processing deficits associated with TBI.

Adjustment Required: I request secure digital delivery of all data in **native formats** (.PST,.XLSX,.PDF with OCR). I specifically request that you utilize the **Microsoft 365**

eDiscovery Export Tool to generate these files, which constitutes a "reasonable adjustment" given your existing IT infrastructure and the anticipatory duty under the DDA.

3. Specific Scope of Request (2024–2025)

I require the following specific datasets:

- **A. The "Alistair Finlay" Whistleblowing Review:**
  - All notes, memos, emails, and interview transcripts generated or reviewed by **Alistair Finlay** (Chief People Officer) during his assessment of my whistleblowing disclosure (ref: letter dated 30 July 2025).
  - The specific "independent file review" document referenced in his correspondence.
  - Any correspondence between Alistair Finlay and **Deloitte Ireland LLP** regarding my case.
  - *Technical Query:* Please confirm if the emails I sent regarding this disclosure were tagged with specific **Retention Labels** in Microsoft Purview, and provide the metadata of those labels.
- **B. Security & Suspension Records:**
  - All logs, incident reports, and **Body-Worn Video (BWV)** footage held by **QUB Security** regarding the alleged incident at the Student Union bar (Sept 2024).
  - All emails between **Student Wellbeing**, **Academic Affairs**, and the **School of Electronics, Electrical Engineering and Computer Science** regarding my "Precautionary Suspension" and "Risk Assessment".[20]
- **C. Forensic Email Metadata (Audit Logs):**
  - I request confirmation of whether my student email account ([Email Address]) was subject to **Audit (Premium)** logging or placed on **Legal Hold**.
  - If yes, I request an export of the **"MailItemsAccessed"** audit logs for the period September 2024 to present, specifically looking for "Bind" events that indicate when emails sent by me were opened by university staff.
  - *Legal Justification:* This metadata constitutes personal data concerning my account activity and the University's processing of my communications.

4. Serious Harm Test (DPA 2018 Schedule 3)

If you intend to rely on the "Serious Harm" exemption to withhold any "Note of Concern" or psychiatric records, you must obtain a *current* opinion from an appropriate health professional (within the last 6 months). To ensure my right of access is not extinguished, I nominate **Dr.** to receive any such withheld data immediately.

5. Immediate Preservation of Data I am aware of your policy to delete student mailboxes 6 months after inactivity.[16] I explicitly request a **Preservation Hold** be applied to my account immediately, as this data is evidence in a potential legal dispute regarding maladministration and disability discrimination.

I expect a response within one calendar month.

Yours sincerely,

Cian Mac Liatháin
[London Address]
[Phone Number]

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8. Conclusion

The University of Galway and Queen's University Belfast operate on sophisticated digital infrastructure (Microsoft 365). The barriers to access they present—"complexity," "volume," "harm"—are largely administrative constructs designed to manage liability. By framing the request through the lens of **Disability Rights (Reasonable Accommodation)** and **Technical Competence (M365 Forensics)**, the Data Subject shifts the burden of proof back onto the institutions. They must now explain why they *cannot* press the "Export" button, rather than the Data Subject explaining why they need the data.
The "Nominated Health Professional" strategy is the failsafe. Even if the universities successfully argue that the records are too dangerous for the student to see, they *must* release them to the doctor. This ensures the data leaves the university's control and enters the Data Subject's sphere of influence, allowing for the forensic reconstruction of the timeline necessary for their defense.

Disclaimer: This report analyzes legal and technical frameworks to assist in self-advocacy. It does not constitute formal legal advice. The engagement of a solicitor in the relevant jurisdiction is recommended for high-stakes litigation.

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